Nevertheless, the "clear and present danger" language [5] of the *Schenck* case has afforded practical guidance in a great variety of cases in which the scope of constitutional protections of freedom of expression was in issue. It has been utilized by either a majority or minority of this Court in passing upon the constitutionality of convictions under espionage acts, *Schenck* v. *United States, supra; Abrams* v. *United States,* 250 U. S. 616; under a criminal syndicalism act, *Whitney* v. *California, supra;* under an "anti-insurrection" act, *Herndon* v. *Lowry, supra;* and for breach of the peace at common law, *Cantwell* v. *Connecticut, supra.* And very recently we have also suggested that "clear and present danger" is an appropriate guide in determining the constitutionality of restrictions upon expression where the substantive evil sought to be prevented by the restriction is "destruction of life or property, or invasion of the right of privacy." *Thornhill* v. *Alabama,* 310 U. S. 88, 105.

Moreover, the likelihood, however great, that a substantive evil will result cannot alone justify a restriction upon freedom of speech or the press. The evil itself must be "substantial," Brandeis, J., concurring in *Whitney* v. *California, supra,* 374; it must be "serious," *id.* 376. And

[5] Restatement of the phrase "clear and present danger" in other terms has been infrequent. Compare, however: ". . . the test to be applied . . . *is not the remote or possible effect.*" Brandeis, J., dissenting in *Schaefer* v. *United States,* 251 U. S. 466, 486. ". . . we should be eternally vigilant against attempts to check the expression of opinions that we loathe and believe to be fraught with death, *unless they so imminently threaten immediate interference with the lawful and pressing purposes of the law that an immediate check is required to save the country.*" Holmes, J., dissenting in *Abrams* v. *United States,* 250 U. S. 616, 630; "To justify suppression of free speech *there must be reasonable ground to fear that serious evil will result* if free speech is practiced. *There must be reasonable ground to believe that the danger apprehended is imminent.*" Brandeis, J., concurring in *Whitney* v. *California,* 274 U. S. 357, 376. The italics are ours.